parties refer to it. Such cases normally come before the Court by notification to the Registry by an agreement, known as a *special agreement* and concluded by the parties especially for this purpose.

The states which are parties to the present Statute may at any time declare that they recognize as compulsory, *ipso facto* and without special agreement, in relation to any other state accepting the same obligation, the jurisdiction of the Court regarding all disputes concerning: (a) the interpretation of a treaty; (b) any question of international law; (c) the existence of any fact which, if established would constitute a breach of an international obligation; (d) the nature or extent of the reparation to be made for the breach of an international obligation.

Article 36 (para 6) of the Statute provides that, in the event of a dispute as to whether the Court has jurisdiction, the matter shall be settled by the decision of the Court. There is also the 'Optional Clause' of this Article under which the terms of compulsory jurisdiction may belong to the Court through voluntary declaration by the member states permitting in certain fields and limiting it in other cases the exercise of such jurisdiction of the Court.[21]

Advisory Jurisdiction

Advisory jurisdiction of the ICJ is exercised when the United Nations General Assembly and the Security Council may request advisory opinions on "any legal question". Other United Nations organs and specialized agencies which have been authorized to seek advisory opinions can only do so with respect to "legal questions arising within the scope of their activities".

On receipt of a request for an advisory opinion, the Court holds the proceedings. The submission by parties may be in either the written or oral form (pleadings). It is rare, however, for the ICJ to allow international organizations, other than the one having requested the opinion, to participate in advisory proceedings. With respect to non-governmental international organizations, the only one ever authorized by the ICJ to furnish information did not in the end, do so (International Status of South West Africa). The Court has rejected all such requests by the private parties.